

Sigma Casting Ltd. v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 17 November 2015 · Writ-C No. 61566 of 2015 · **Writ dismissed; liberty to pursue Clause 6.5 remedy.**

HEADNOTE

A writ challenging the total demand in an electricity bill is not entertained when Clause 6.5 of the Electricity Supply Code, 2005 supplies a statutory alternative remedy; the petition is dismissed with liberty to pursue that remedy.

FACTUAL SUMMARY

Sigma Casting Ltd., through its Director, filed Writ-C No. 61566 of 2015 in the Allahabad High Court against the State of Uttar Pradesh and four other respondents. The dispute concerned the total demand raised under an electricity bill dated 1 October 2015. The petitioner was dissatisfied with that demand for reasons not particularised in the short order. Counsel for the parties were heard. The Court did not examine the bill's figures or any other factual controversy on the record.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

alternative remedy against billed demand

HOLDING

A consumer dissatisfied with the total demand raised under an electricity bill has a statutory alternative remedy under Clause 6.5 of the Electricity Supply Code, 2005; a writ petition is dismissed with liberty to pursue that remedy. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE DEMAND UNDER THE BILL DATED 01.10.2015

Court did not examine the bill on merits and left the petitioner to Clause 6.5. ¶ 1